

judges to be absolutely immune from liability for their judicial acts, *Pierson v. Ray*, *supra*.²

In justifying absolute immunity for certain officials, both at common law and under 42 U. S. C. § 1983, courts have invariably rested their decisions on the proposition that such immunity is necessary to protect the decision-making process in which the official is engaged. Thus legislative immunity was justified on the ground that such immunity was essential to protect "freedom of speech and action in the legislature" from the dampening effects of threatened lawsuits. *Tenney v. Brandhove*, *supra*, at 372. Similarly, absolute immunity for judges was justified on the ground that no matter how high the standard of proof is set, the burden of defending damage suits brought by disappointed litigants would "contribute not to principled and fearless decision-making but to intimidation." *Pierson v. Ray*, *supra*, at 554. In *Bradley v. Fisher*, 13 Wall. 335, 347 (1872), the Court stated:

"For it is a general principle of the highest importance to the proper administration of justice that a judicial officer, in exercising the authority vested in him, shall be free to act upon his own convictions, without apprehension of personal consequences to himself. Liability to answer to every one who might feel himself aggrieved by the action of the judge, would be inconsistent with the possession of this freedom, and would destroy that inde-

in the "Speech or Debate Clause" and into many state constitutions as well. 341 U. S., at 372-373.

² The Court concluded that "[f]ew doctrines were more solidly established at common law than the immunity of judges from liability for damages for acts committed within their judicial jurisdiction, as this Court recognized when it adopted the doctrine in *Bradley v. Fisher*, 13 Wall. 335 (1872)." 386 U. S., at 553-554.